

25AVCV00295 25AVCV00295

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Case Number: 25AVCV00295 Hearing Date: July 2, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

MARIA RODRIGUEZ TORRES,

Plaintiff,

v.

CESAR AVILA; EDITH FLORES, DOES 1 through 100,

Defendants.

Case Number 25AVCV00295

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 2, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a wrongful death case arising from a motor vehicle accident which took the life of Plaintiff Maria Rodriguez Torres's daughter, Decedent Yumari Guzman.

On March 6, 2025, Plaintiff Maria Rodriguez Torres (Plaintiff) filed her form complaint against Defendants Cesar Avila (Avila), Edith Flores (Flores) (together Defendants), and DOEs 1 through 100, asserting causes of action for (1) motor vehicle personal damage, personal injury, and wrongful death, (2) general negligence, and (3) premises liability. (Compl., ¶ 10.) Plaintiff asserts she has suffered wage loss, loss of use of property, hospital and medical expenses, general damage, property damage, and loss of earning capacity, and requests compensatory damages according to proof. (Compl., ¶¶ 11-14.)

Specifically, Plaintiff claims that Flores is the mother of Avila and owner of the residential property located at 36442 50th Street East, Palmdale, CA 93552 (Property). (Compl. Attachment, Cause of Action – General Negligence.) Plaintiff alleges that on October 6, 2024, Yumari Guzman (Guzman) was served alcohol at the Property and permitted to ride as a passenger on a motorcycle, knowing it was dangerous and could cause eventual injury or death. (Ibid.)

On April 28, 2025, Flores filed a general denial and an answer, conceding that she is the owner of the Property but stating she is not the mother of Avila, and asserting eleven affirmative defenses. (Flores Answer, Attachments 2-3; Flores General Denial.)

On April 28, 2025, Avila filed his answer, generally denying each allegation of the complaint. (Avila Answer, ¶ 2.)

On April 6, 2026, Flores filed a motion for summary judgment.

On June 11, 2026, Plaintiff filed her opposition.

On June 17, 2026, Flores filed her reply and objections to Plaintiff's evidence.

II. Legal Standard

Standard for Motion for Summary Judgment – Summary judgment is proper “if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Code Civ. Proc., §437c, subd. (c).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850.) A defendant moving for summary judgment must show either (1) that one or more elements of the cause of action cannot be established or (2) that there is a complete defense to that cause of action. (Id. at §437c(p).) A defendant may discharge this burden by furnishing either (1) affirmative evidence of the required facts or (2) discovery responses conceding that the plaintiff lacks evidence to establish an essential element of the plaintiff's case. If a defendant chooses the latter option, he or she must present evidence “and not simply point out that plaintiff does not possess and cannot reasonably obtain needed evidence....” (Aguilar, supra, 25 Cal.4th at 865-66.)

Until the moving defendant has discharged its burden of proof, the opposing plaintiff has no burden to come forward with any evidence. Once the moving defendant has discharged its burden as to a particular cause of action, however, the plaintiff may defeat the motion by producing evidence showing that a triable issue of one or more material facts exists as to that cause of action. (See Code Civ. Proc. § 437c(p)(2).) On a motion for summary judgment, the moving party's supporting documents are strictly construed and those of his opponent liberally construed, and doubts as to the propriety of summary judgment should be resolved against granting the motion. (D'Amico v. Board of Medical Examiners (1974) 11 Cal.3d 1, 21.)

The court must grant a motion for summary judgment if, after all admissible evidence is considered, there is no triable issue as to any material fact. (See Code Civ. Proc. § 437c(c).) The court has no discretion to deny a summary judgment motion where the moving party has met their burden and the opposing party has failed to establish any triable issue of material fact exists, and the moving party is entitled to judgment as a matter of law. (Krasley v. Superior Court (1980) 101 Cal.App.3d 425 432..)

III. Evidentiary Objections

Flores's Objections – Flores submits 14 evidentiary objections to Plaintiff's evidence. (Objections to Evidence.) Flores's evidentiary objections are not properly formatted pursuant to CRC Rule 3.1354(b)(1), as they are not numbered. The Court's ruling on the objections assigns standard numeration.

Flores's objections to the Declaration of Cristian Baraja are OVERRULED as to Nos. 1- 10.

Flores's objections to the Deposition of Edith Flores are OVERRULED as to Nos. 1-4.

IV. Discussion

Application – The elements of a wrongful death claim are a wrongful act or neglect resulting in death and damages. (Lattimore v. Dickey (2015) 239 Cal.App.4th 959, 968.)

The elements of a negligence cause of action are (1) the existence of a legal duty of care, (2) a breach of that duty, (3) proximate cause resulting in injury, and (4) damages. (McIntire v. The Colonies-Pacific, LLC (2014) 228 Cal.App.4th 664, 671.) The elements of a cause of action for premises liability are the same as those for negligence. (Castellon v. U.S. Bancorp (2013) 220 Cal.App.4th 994, 998.)

a. Flores's Burden of Proof

Flores first bears the burden to establish that no triable issue of material fact exists. Flores moves for summary judgment as to all causes of action asserted against her on the grounds that she owed no duty to Guzman, that no duty was therefore breached, and that neither the furnishing of alcohol nor the storage of the motorcycle on the Property was a proximate cause of Guzman's death.

The undisputed facts show that on October 6, 2024, Guzman and Avila, both adults, were present at the Property before getting on a motorcycle owned and operated by Avila. (UMF No. 2-4.) The motorcycle crashed, and Guzman was pronounced deceased at the scene. Following the accident, Avila was arrested for driving under the influence of alcohol and gross vehicular manslaughter while intoxicated. (UMF No. 5.)

It is further undisputed that Flores has owned the Property since approximately 2006, and in 2019, began renting a single bedroom to her sister Maya Flores, the mother of Avila, in 2019. (UMF Nos. 6-8.) Finally, it is undisputed that Flores left the Property on October 3, 2024, and did not return until October 6, 2024, after the accident had occurred, that Flores did not purchase alcohol for any persons who may have been at the Property between October 3-6, 2024, that Flores has never invited Guzman to the Property and had no knowledge that she may have been present on the Property on October 6, 2024,

and that Flores does not own, and had no role in the purchase of, the motorcycle involved in the accident. (UMF Nos. 11, 16-17, 22-23.)

In support of summary judgment, Flores offers the Declaration of Mark T. Petersen. Attached to the Petersen Declaration are the Traffic Crash Report and the Narrative/Supplemental Report prepared by the Los Angeles County Sheriff's Department following the accident, the DUI Complaint Report, the Special Interrogatories propounded on Plaintiff, and Plaintiff's responses thereto. (Petersen Decl., ¶¶ 2-6.) The Traffic Crash Report shows that the motorcycle involved in the accident was owned and operated by Avila at the time of the crash. (Petersen Decl., Ex. 2.) The DUI Crash Report states that Avila had been drinking alcohol, had a strong alcoholic odor on his breath, reported drinking alcohol approximately 30 minutes before the crash, and refused a preliminary breath test. (Petersen Decl., Ex. 3, p. 1.)

Flores also submits her own declaration in support of her motion, in which she states Avila's mother Maya Flores rented a room in the Property from 2019 through February of 2026, that Avila only occasionally stayed overnight, but never rented any space at the Property and never had his own bed, furniture, or other personal residence items at the Property. (Flores Decl., ¶¶ 3-5.) Flores states she left the property on October 3, 2024 and returned after the accident on October 6, 2024. (Id. at ¶ 6.) Flores further contends she did not invite Avila or any other person to the Property during this period, did not host any social gathering or have knowledge of any social gathering during this period, and did not purchase, furnish, serve, or make available any alcoholic beverages to any person at the Property during this period. (Id. at ¶ 8-10.) Flores also states that she has never invited Guzman to the Property, seen her on the Property, met her or have any knowledge of who she is, furnished alcohol to her, and had no knowledge of her presence on the Property on October 6, 2024. (Id. at ¶¶ 11-13.) Flores finally avers that to her knowledge, Avila never hosted guests at the Property who participated in drinking alcohol. (Id. at ¶¶ 14.)

Flores also argues that she was not a social host on the evening of October 5th or morning of October 6th, but to the extent that liability is predicated on the furnishing of alcohol or failure to prevent Guzman and Avila from drinking alcohol and subsequently getting on a motorcycle, Civil Code section 1714 and Business & Professions Code section 25602, subdivision (b) preclude imposition of liability against Flores. (Motion, p. 3:6-25, 4:12-23.) Civil Code section 1714, subdivisions (b)-(c) state, in relevant part, that "the furnishing of alcohol beverages is not the proximate cause of injuries resulting from intoxication, but rather, the consumption of alcohol beverages is the proximate cause of injuries inflicted upon another by an intoxicated person" and "no social host who furnishes alcoholic beverages to any person may be held legally accountable for damages suffered by that person, or for injury to the person or property of, or death of, any third person, resulting from the consumption of those beverages." Business & Professions Code section 25602, subdivision (b) holds that no person who furnishes or gives, or causes to be furnished or given away, any alcoholic beverage to a habitual or common drunkard or to any obviously intoxicated person shall be civilly liable to any injured person or the estate of such person for injuries inflicted on that person as a result of intoxication by the consumer of said beverage.

Flores argues that if the accident in which Guzman was killed occurred as the result of Avila's alcohol consumption, the consumption of alcohol itself was the proximate cause, thereby undermining the necessary causation element for Plaintiff's negligence and premises liability actions. (Motion, p. 3:26-4:2.) Further, Flores argues that even if she is to be characterized as a social host, she had no duty to supervise intoxicated guests on her Property, no duty to Guzman as a passenger to prevent an intoxicated adult guest from driving, nor any duty to warn Guzman of Avila's intoxication. (Motion, p. 5:9-11, 6:25-7:2.) Finally, Flores argues that she cannot be held liable for failing to provide safe transportation for Guzman, as the alcohol was brought onto the premises without her knowledge, she was not present on the Property, and the Legislature's intent is clear that consumption of alcohol is the proximate cause of injury to any person as a result of the consumption, providing absolute social host immunity in such circumstances. (Motion, p. 8:11-20.)

Here, Flores has carried her initial burden.

Flores states in her declaration that Avila never rented any space at the Property, and while he occasionally stayed overnight, he was merely a guest who did not have his own bed, furniture, or other personal residence items at the Property. Flores also states in her declaration that she did not invite Avila to the Property between October 3-6, 2024. Also undisputed are the facts that Flores did not know Guzman, did not know she may be on the Property on October 6, 2024, never furnished her alcohol, and was not in town or on the Property on the dates leading up to or on the date of the accident. As such, Flores presented evidence that on October 6, 2024, Avila and Guzman were, at most, guests on the Property who were not invited or hosted by Flores, and of whose presence Flores was unaware.

Under these circumstances, *Andre v. Ingram* (1985) 164 Cal.App.3d 206 is instructive as to the issues of causation and duty. In this personal injury action, the Court of Appeal affirmed the trial court ruling sustaining defendant's demurrer to the operative complaint without leave to amend. In *Andre*, the plaintiff and a third party, both adults, resided in the home of the third party's mother. (*Andre*, supra, 164 Cal.App.3d at 208.) The plaintiff purchased, and with the third party drank, alcohol in the mother's home, left in plaintiff's vehicle driven by the third party, who was intoxicated, and the plaintiff was injured when her vehicle was involved in a collision. (*Ibid.*) The plaintiff sued only the mother, alleging she had a duty to prevent the plaintiff from being driven in a car by her intoxicated son or otherwise warn the plaintiff of her son's intoxicated condition. (*Ibid.*) The Court rejected this argument, stating that "consumption of alcohol is the proximate cause of resulting injuries." (*Id* at 209.) The Court also noted that the general law that foreseeable misconduct on the part of another is not a supervening cause relieving one from common law liability does not apply in the area of consumption of alcoholic beverages by competent adults pursuant to Civil Code section 1714, stating "[i]t would be unreasonable to conclude that a person, who did not prevent another person from driving while intoxicated, would not be liable if he furnished the alcohol which caused the intoxication, but would be liable if he did not furnish it." (*Id* at 211.)

The Court further disregarded the arguments that the mother could be held liable for failure to warn the plaintiff that her son might be intoxicated or because she created a foreseeable risk of harm to the plaintiff, noting that the mother did not purchase the alcohol, did not furnish it to her son, did not permit him to consume it, did not let him drive the plaintiff's car, and did not put the plaintiff in her car. (*Ibid.*) Ultimately, the Court held that "[t]he law which bars liability for a host who furnishes alcoholic beverages applies with even greater force where, as in this case, the host (hostess) did not furnish the alcoholic beverage, appellant did. The effect of the statute cannot be avoided by alleging the wrong, not as furnishing the alcohol, but as failing to warn the passenger or stop the driver." (*Id* at 208.)

The Court in *DeBolt v. Kragen Auto Supply, Inc.* (1986) 182 Cal.App.3d 269 reached a similar conclusion in affirming the trial court's sustaining demurrers without leave to amend. In *DeBolt*, the Court of Appeal held that "[t]he effect of the statute cannot be avoided by alleging the wrong, not as furnishing alcohol,' but as forcing a person to leave a party or failing to provide safe transportation. [Citation.]" (*DeBolt*, supra, 182 Cal.App.3d at 274 (citation omitted).) The Court in *Biles v. Richter* (1988) 206 Cal.App.3d 325 held that even assuming a duty of care existed, a host who failed to supervise their intoxicated guests was shielded by immunity under Civil Code section 1714 where a guest who was smoking while intoxicated started a fire which injured another guest. (*Biles*, supra, 206 Cal.App.3d at 329; see also *Allen v. Liberman* (2014) 227 Cal.App.4th 46.)

This line of cases makes clear that alcohol consumption is the proximate cause of injury where it results from the actions of an intoxicated individual, that Civil Code section 1714 applies and shields a defendant from liability under such circumstances whether the defendant furnished the alcohol or not, and that no duty exists for a host to warn or otherwise provide safe transportation to a guest, even where injury results from driving while intoxicated.

Accordingly, Flores has met her burden by affirmatively showing that the elements of duty and proximate cause are absent in this case under Civil Code section 1714. Thus, the burdens shifts to Plaintiff to establish a triable issue of material fact.

b. Plaintiff's Burden of Proof

In opposition, Plaintiff contends her causes of action rest on independent duty theories, being (1) negligent entrustment of the motorcycle, (2) premises liability based on ownership, possession, and control, (3) failure to secure or remove an inherently dangerous instrumentality from common living areas despite known, regular alcohol consumption on the premises, and (4) affirmative risk-creating conduct that foreseeably contributed to the fatal operation of the motorcycle on October 6, 2024. (*Opp.*, p. 2:13-18.) Plaintiff also contends Flores had constructive notice of the motorcycle being stored in the living room and the regular pattern of alcohol consumption at social gatherings.

Plaintiff proffers the Declaration of Cristian Barajas (*Barajas Decl.*) and copies of select portions of Flores's Deposition testimony, attached as Exhibit A to the Declaration of Jason S. Halpern (*Halpern Decl.*).

To start, Plaintiff's negligent entrustment argument fails. She does not submit evidence creating a triable issue of fact as to whether Flores can be held liable on the alternative theory of negligent entrustment. "[T]o hold a defendant liable for negligent entrustment, the plaintiff must prove that: (1) the driver was negligent in operating the vehicle; (2) the defendant was an owner of the vehicle operated by the driver; (3) the defendant knew, or should have known, that the driver was incompetent or unfit to drive the vehicle; (4) the defendant permitted the driver to use the vehicle; and (5) the driver's incompetence or unfitness to drive was a substantial factor in causing harm to the plaintiff." (*Tavares v. Zipcar, Inc.* (2026) 118 Cal.App.5th 219, 230.)

Here, it is undisputed that Flores did not own or purchase the motorcycle, thereby negating an essential element of negligent entrustment. Further, there is no evidence provided by Plaintiff that Flores had any reason to know, or that she actually knew, that Avila was incompetent or unfit to drive the vehicle. Additionally, the Court does not find that the motorcycle being stored in the living room, as Plaintiff claims, as opposed to in the driveway in front of the home, as Flores claims, is a dispositive issue. (Halpern Decl., Ex. A, p. 10.) In either event, it appears the motorcycle was on the Property, readily accessible, and that Flores had no control or ownership of the motorcycle. A reasonable inference does not arise that because the motorcycle was in the living room, Avila and his guests would be more inclined to operate it after drinking. Plaintiff has not provided any evidence that the motorcycle being stored in the living room in any way contributed to the subject accident, nor that Flores was able to remove the motorcycle from the Property, disable the motorcycle, or otherwise restrict Avila's access to the motorcycle, which was unequivocally the personal property of Avila alone.

Furthermore, Plaintiff's lead authority—*Blake v. Moore* (1984) 162 Cal.App.3d 700, 706—is inapposite. *Blake* holds that Civ. Code § 1714 immunity protects only against risks flowing from the supply of liquor and would not immunize a defendant's negligent entrustment of a vehicle. (*Id.*, 162 Cal.App.3d at 702 ("While defendant's argument would be compelling if plaintiff had been driving his own car, it does not provide a defense to the allegation of negligent entrustment.")) As shown above, there is no evidence to support the negligence entrustment cause of action..

Plaintiff's evidence does create a triable issue of disputed fact as to whether Avila resided in the Property or whether his status is merely a guest. In his declaration, Cristian Barajas states he is personally acquainted with Avila, is familiar with the Property owned by Flores, and has personal knowledge that Avila resided on the Property on October 6, 2024, that Avila was renting together with his mother Maya Flores, that he kept his belongings at the Property, and was present on a regular basis. (Barajas Decl., ¶ 1-3.) Plaintiff further puts forth Flores's deposition testimony, in which she states Avila was welcome to stay at the Property whenever he liked and that he had a key to the home. (Halpern Decl., Ex. A, p. 8.)

However, the Court finds that whether Avila held the status of a tenant or as a guest on the Property is not material, as Plaintiff has failed to put forth evidence of the essential elements of duty, breach, and causation as to Guzman, who must be categorized as a social guest under the circumstances presented.

As discussed above, the evidence set forth on the triable issue of whether Avila was a guest, resident, or tenant of the Property bears no weight as to Guzman's social guest status on the Property, and Flores is immune from civil liability pursuant to Civil Code section 1714. Plaintiff has failed to establish that any duty is imposed based on Avila's status as a tenant.

"A landowner owes a duty to exercise reasonable care to maintain his or her property in such a manner as to avoid exposing others to an unreasonable risk or injury. [Citations.] The failure to fulfill the duty is negligence. [Citation.] The existence of a duty of care is an issue of law for the court. [Citation.]" (*Barnes v. Black* (1999) 71 Cal.App.4th 1473, 1478 (citations omitted).) "The following factors determine the scope of the landowner's duty of care under the relevant circumstances: the foreseeability of harm to the injured party; the degree of certainty he or she suffered injury; the closeness of the connection between the defendant's conduct and the injury suffered; the moral blame attached to the defendant's conduct; the policy of preventing future harm; the extent of the burden to the defendant and the consequences to the community of imposing a duty of care with resulting liability for breach; and the availability, cost, and prevalence of insurance for the risk involved. [Citation.]" (*Ibid*; citing *Rowland v. Christian* (1968) 69 Cal. 2d 108, 113.) The duty of care owed by a landowner "is not limited to injuries that occur on premises owned or controlled by the landowner," but "encompasses a duty to avoid exposing persons to risks of injury that occur off site if the landowner's property is maintained in such a manner as to expose persons to an unreasonable risk of injury offsite. [Citations.]" (*Id.* at 1478-79.) Thus, these factors determine the scope of a landowner's duty whether the risk of harm is situated on- or off-site. (*Ibid.*)

Public policy has generally precluded a landlord's liability for injuries suffered by a tenant's invitees from a dangerous condition on the premises coming into existence after the tenant has taken possession, even if the landlord might have discovered the condition by exercise of reasonable diligence. (*Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, 510.) However, several exceptions exist, such as where injury occurs on a part of the premises over which the landlord retains control. (*Id.* at 511.) "A common element in these exceptions is that either at or after the time possession is given to the tenant the landlord retains or acquires a recognizable degree of control over the dangerous condition with a concomitant right and power to obviate the condition and prevent the injury. In these situations, the law imposes on the landlord a duty to use ordinary care to eliminate the condition with resulting liability for injuries caused by his failure so to act. [Citation.]" (*Ibid* (citations omitted).) Thus, if a landlord has a degree of control over the premises that he or she can obviate the presence of the condition and has knowledge thereof, a duty of ordinary care is imposed on the landlord. (*Id.* at 512.) However, "a landlord should not be held liable for injuries from conditions over which he has no control." (*Ibid.*)

Here, the dangerous condition alleged is the presence of the motorcycle in the living room in conjunction with the regular consumption of alcohol on the Property. However, Plaintiff has not put forth any evidence that there was regular drinking on the Property, nor that Flores knew or should have known of alcohol consumption on the Property. The only evidence put forth by Plaintiff is that Avila, Guzman, and other guests were drinking alcohol on the Property on October 6, 2024, when Flores was not present.

As to the factors in establishing duty, Plaintiff presents no evidence that the harm to Guzman was foreseeable. Plaintiff argues that Flores was on constructive notice of the dangerous conditions on the property, namely that the motorcycle was stored in the living room and there was a regular pattern of alcohol consumption at social gatherings on the Property. (Plaintiff's Response to UMF No. 14.) However, Plaintiff offers no evidence that Flores had any actual or constructive knowledge of regular alcohol consumption on the premises. The Barajas Declaration establishes that alcohol was present at the Property on October 6, 2024, but is silent as to any other instance in which alcohol was present, much less that Flores was aware of it. Furthermore, as to foreseeability, Plaintiff has failed to present evidence showing the foreseeability of the motorcycle accident or the specific injury suffered by Guzman. No evidence has been presented that Avila had ever invited guests into the home prior to the date of the accident, that Avila or his guests had ever consumed alcohol at social gatherings on the Property, that Avila had ever driven under the influence on previous occasions, or that Avila had ever negligently or recklessly operated or crashed his motorcycle. On the contrary, the deposition testimony of Flores provided by Plaintiff establishes that she has testified that Avila never had friends over to the Property prior to October 6, 2024. (Halpern Decl., Ex. A, p. 20.) Further, Flores offered in her declaration that to her knowledge that Avila never hosted guests at the Property before October 6, 2024. Plaintiff "disputes" this evidence by claiming that witness Barajas "personally observed social gatherings involving Avila and alcohol at the Premises on multiple occasions prior to the incident." (Plaintiff's Response to UMF No. 20, citing to Barajas Decl. at para. 6.)

There are a couple problems with that citation. First, it does not contradict Flores' testimony about what she knew. Second, and more importantly, Barajas' Declaration nowhere contains a statement that Barajas observed gatherings involving Avila and alcohol "on multiple occasions" prior to the incident. The Barajas Declaration's observations about alcohol are confined to "the date of the incident." (Barajas Decl., para. 4.)

Finally, the connection between Flores's conduct and the injury suffered is attenuated. It is undisputed that Flores did not know Guzman or have any knowledge that she may be present on the Property on October 6, 2024. Flores's conduct in allegedly permitting Avila to store the motorcycle in the living room of the Property with knowledge that alcohol was regularly consumed within the home is not so strong as to impose on Flores a duty to essentially convert Avila's motorcycle to prevent potential operation under the influence resulting in the death of a guest who entered the Property without Flores's knowledge.

The moral blame attached to the Defendant's conduct further weighs against the imposition of any duty on Flores, as she was not present on the Property, Avila consumed alcohol which was not supplied, purchased, or encouraged by Flores, and Avila decided to operate the motorcycle with a passenger while under the influence. In this case, there is no dispute or question that Avila is responsible for operating the motorcycle under the influence which resulted in Guzman's death, and the Court has seen no evidence on which it appears justified to place the moral blame for the decisions leading to the accident on Flores. In regard to the policy of preventing future harm, the Court finds that imposing a duty on a landlord or property owner, even one who has control over the premises, to monitor the alcohol intake of competent adults residing on the Property and take affirmative action to remove or otherwise disable motor vehicles to protect social guests is contrary to the

explicit legislative policy surrounding alcohol intake and subsequent injury delineated in Civil Code section 1714, subdivisions (b) and (c).. The extent of the burden and the consequences to the community in imposing liability in this case risk extending liability to a point the Legislature clearly did not intend.

Here, Plaintiff argues that the motorcycle was a dangerous instrumentality kept within the home, and that Flores had a duty to secure the keys, disable the ignition, relocate the motorcycle, or prohibit its use during gatherings. (Opp., p. 11:14-16.) However, Plaintiff has offered no evidence that Flores undertook to manage, supervise, or control the motorcycle, nor that she had any ability to do so. (See Andre, supra, 164 Cal.App.3d 210-11 [contention of duty untenable where plaintiff does not suggest how a defendant reasonably could have prevented an individual from consuming alcohol or driving a vehicle while impaired].) Thus, imposing a duty on Flores in the absence of the factors listed above would stretch liability and duty far beyond the bounds of typical landlord-tenant law, impaired driving laws, and clear Legislative intent to limit liability of third parties in connection with injury and death caused by intoxication. Finally, there is no evidence that Flores has available to her insurance in connection with the risk of an adult tenant securing and consuming alcohol and subsequently operating a motor vehicle resulting in an accident.

Finally, Avila's status as a guest versus as a resident is not dispositive on the issue of causation. As discussed above, in Andre, the injured plaintiff and the third party who drove while intoxicated resided at the mother's property where they consumed the alcohol. Here, Guzman is unquestionably a social guest on the property, and neither Plaintiff nor Flores contend she was a resident or tenant. Thus, even if the evidence shows Avila was a resident or tenant on the Property at the time of the accident, the proposition set forth in Andre that the consumption of alcohol is the proximate cause of any subsequent injury caused by intoxication still controls.

Accordingly, Plaintiff has failed to establish a triable issue of material fact exists.

V. Conclusion

Defendant Edith Flores' Motion for Summary Judgment is GRANTED.